

SENATE No. 145

The Commonwealth of Massachusetts

PRESENTED BY:

Robyn K. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to supporting survivors of domestic violence and enhancing child welfare.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>5/27/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>6/12/2025</i>

SENATE No. 145

By Ms. Kennedy, a petition (accompanied by bill, Senate, No. 145) of Robyn K. Kennedy for legislation to support survivors of domestic violence and enhancing child welfare. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to supporting survivors of domestic violence and enhancing child welfare.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 21 of chapter 119 of the general laws, as so appearing in the 2022
2 Official Edition, is hereby amended, in line 1, by striking out the word “51H” and inserting in
3 place thereof the following word:- 51I

4 SECTION 2. Chapter 119 of the general laws is hereby amended by adding the following
5 section:-

6 Section 51I. There is a rebuttal presumption that neglect does not include a failure of a
7 victim of domestic violence to:

- 8 (a) Prevent a child from witnessing the domestic violence;
- 9 (b) Leave the home in which the alleged perpetrator resides;
- 10 (c) End a relationship with the alleged perpetrator;

- 11 (d) Report the domestic violence to law enforcement or the department of children
- 12 and families;
- 13 (e) Seek an abuse prevention order under Chapter 209A; and
- 14 (f) Seek a harassment prevention order under Chapter 258E.